

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 3835

By: May of the House

and

Gillespie of the Senate

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10 COMMITTEE SUBSTITUTE

11 An Act relating to human trafficking; amending 22
12 O.S. 2021, Section 19c, which relates to criminal
13 arrest record expungements for victims of human
14 trafficking; deleting good cause standard;
15 authorizing expungements for criminal offenses
16 committed by human trafficking victims; clarifying
17 notice requirements; providing for the waiver of
18 filing fees and costs; requiring closed hearings;
19 directing courts to make certain considerations
20 regarding human trafficking victimization; providing
21 burden of proof standard; directing courts to grant
22 petitions if burden of proof is met; allowing victims
23 to seek relief at any time; and providing an
24 effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 22 O.S. 2021, Section 19c, is
amended to read as follows:

1 Section 19c. A. 1. The court, upon its own motion or upon
2 petition by the defendant ~~and for good cause shown~~, may enter an
3 order for expungement of law enforcement and court records relating
4 to a charge or conviction for ~~a prostitution-related~~ any criminal
5 offense committed as a result of the defendant having been ~~a victim~~
6 part of the victimization of human trafficking. The order shall
7 contain a statement that the expungement is ordered pursuant to this
8 section. ~~An order entered~~

9 2. A motion or petition filed by the defendant pursuant to this
10 section shall be subject to the notice requirements and provisions
11 of ~~subsections B through M of Section 19 of Title 22 of the Oklahoma~~
12 ~~Statutes~~ this title. Any filing fees or costs associated with the
13 motion or petition for expungement shall be waived by the court.

14 3. Upon the court setting a date for hearing the request for
15 expungement, the court shall require that said hearing be closed to
16 the public.

17 4. Records expunged pursuant to this section shall be sealed to
18 the public but not to law enforcement agencies for law enforcement
19 purposes.

20 B. To determine whether a person was a victim of human
21 trafficking, the court shall consider the following:

22 1. The definition of human trafficking, which shall have the
23 same meaning as such term is defined in Section 748 of Title 21 of
24 the Oklahoma Statutes or Sections 1589, 1590, 1591, or subsection A

1 of Section 1594 of Title 18 of the United States Code, depending on
2 whether the record sought to be expunged is pursuant to state or
3 federal law; and

4 2. Official documentation or prior determination of
5 victimization. Provided, official documentation or prior
6 determination of victimization is not necessary to obtain an
7 expungement under the provisions of this section. However, the
8 existence of official documentation, prior determination of
9 victimization, or a showing by the defendant that there is a causal
10 link between the period the defendant was trafficked and the crime
11 committed, shall create a presumption that the charge or conviction
12 considered for expungement was a direct result of said
13 victimization. If official documentation or prior determination of
14 victimization does not exist, the defendant shall attach to the
15 petition for expungement an affidavit executed by a service provider
16 expert witness or law enforcement expert witness attesting to the
17 status of the defendant as a victim of human trafficking.

18 C. The burden of proof for determining whether the charge or
19 conviction of the defendant in the petition for expungement was
20 committed as a result of having been a part of the victimization of
21 human trafficking shall be upon the defendant to prove a
22 preponderance of the evidence.

1 D. The court shall grant a petition for expungement filed by
2 the defendant under the provisions of this section if the burden of
3 proof is met.

4 E. An expungement may be pursued under the provisions of this
5 section regardless of the amount of time between the relevant charge
6 or conviction and when relief is sought.

7 SECTION 2. This act shall become effective November 1, 2026.

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9 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY AND PUBLIC SAFETY
10 OVERSIGHT, dated 03/05/2026 - DO PASS, As Amended.